
Appeal Decision

Site visit made on 11 August 2026

by Jonathan Edwards BSc(Hons) DipTP MRTPI

an Inspector appointed by the Secretary of State

Decision date: 03 September 2026

Appeal Ref: 6010739

St Barnabas Church, St Barnabas Close, Hereford, Herefordshire HR1 1DT

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr Simon Patient (Heritage Manor Ltd) against the decision of the County of Herefordshire District Council.
 - The application Ref is 251696.
 - The development proposed is demolition of existing Church. Erection of 52 Bed care facility on three floors with ancillary areas and parking.
-

Decision

1. The appeal is allowed and planning permission is granted for the demolition of existing church and erection of 52 Bed care facility on three floors with ancillary areas and parking at St Barnabas Church, St Barnabas Close, Hereford, Herefordshire HR1 1DT in accordance with the terms of the application, Ref 251696, subject to the conditions in the attached schedule.

Application for costs

2. An application for costs has been made by Mr Simon Patient (Heritage Manor Ltd) against the County of Herefordshire District Council. This application is the subject of a separate decision.

Preliminary Matters

3. Representations suggest the Council should not have entertained the planning application leading to this appeal as an incorrect certificate of ownership has been submitted. The Council considers this matter has been addressed through the submission of a revised site location plan with an amended red line defining the extent of the development site. It is clear the Council considers the ownership certificate form is correct as it has determined the planning application leading to this appeal. Given this context and the lack of substantive evidence to the contrary, I find no reason to turn away this appeal on validity grounds.
4. The government issued a revised version of the National Planning Policy Framework (the Framework) in August 2026 and after the appeal was lodged. I have considered the main parties' comments on the Framework in my assessment.

Main Issues

5. The main issues are (i) whether the proposal would result in the unacceptable loss of a community facility, and (ii) its effect on living conditions at residences on Admirals Close and at The Vicarage with regards to privacy and outlook.

Reasons

Whether the proposal would result in the unacceptable loss of a community facility.

6. Under policy SC1 of the Herefordshire Local Plan Core Strategy (2015) (the CS), existing social and community facilities such as places of worship should be retained unless specified circumstances apply. These include when appropriate alternative facilities are available, or where it is shown the facility is no longer required, viable or fit for purpose and where appropriate, it has been vacant and marketed for community use without success.
7. Policy HC6 of the Framework also resists the loss of key community facilities including places of worship that have been used on a frequent basis. However, the same policy allows their removal when there is no reasonable prospect of the community use being retained due to insufficient community support or there is sufficient alternative provision in the local area.
8. The church and appeal site is owned by the Diocese of Hereford. However, it was declared closed for regular public worship in June 2019. For a while, it was informally used by an independent church but this use of the building ceased in July 2024 after the occupants were instructed to leave. Since then, the building has been vacant.
9. Only a limited level of information has been provided on the former users of the church and where they now operate. However, there is no substantive evidence that contradicts the appellant's claims that the independent church and other users of the building have moved to other venues.
10. No detailed information has been provided by the Council nor the appellant on the presence and availability of community facilities within the local area. The appellant disputes the Council's suggestion that there is a limited supply of community facilities within the northern part of Hereford. However, even if the Council's contentions are accepted, it is fair to envisage a broader range of community facilities exist in the city as a whole. Indeed, the supporting text to CS policy SC1 highlights as a key issue the lack of local services and facilities in rural areas and their increasing concentration in towns. Therefore, I tend to favour the appellant's suggestion that there are sufficient alternative community facilities to the church within the local area.
11. I am advised the appeal site has been marketed, although there is very limited information before me on the marketing exercise and on the inquiries that this generated. As such, I am unconvinced the community facility use of the church would be unviable, although it would seem the marketing of the property has been unsuccessful. In any event, CS policy SC1 only requires marketing where appropriate. Moreover, policy HC6 of the Framework only refers to marketing of shops and public houses where commercial viability is an issue. Therefore, neither CS policy SC1 nor policy HC6 of the Framework require the church to be marketed if there is sufficient alternative facilities in the local area.
12. The evidence before me indicates that the church is no longer required as there are reasonable alternative facilities. For these reasons, I conclude the development would not result in the unacceptable loss of a community facility. In these regards, it would accord with CS policy SC1 and policy HC6 of the Framework.

Effect on living conditions.

13. The appeal site slopes down from the front to the rear. As such, a car park to the rear of the site is at a lower ground level compared to the church. The car park adjoins the gardens of residences on Admirals Close as well as a garden to The Vicarage. I saw a fence, bushes and trees on parts of the boundary between the appeal site and the adjoining residences. Even so, the absence of trees and bushes on parts of the boundary means there is clear sight of the rear of Admirals Close residences from the church and the car park. Such views are from elevated vantage points as the residences are on lower land compared to the church.
14. The rear part of the proposed facility would be nearer to the boundary with Admirals Close and The Vicarage compared to the church. The nearest walls to the rear boundary would contain no windows. However, there would be windows in other walls as well as balconies and terraces towards the rear of the building. These would provide new vantage points to look onto the neighbouring properties. Trees on and near the common boundary would be retained and additional tree planting is proposed. However, the CGI images provided by the appellant suggest the vegetation would not entirely obstruct views onto Admirals Close and The Vicarage. As such, it is likely the development would lead to more intrusive overlooking onto the adjacent residences compared to the existing situation.
15. It is common for homes and gardens within urban areas to be overlooked to a degree by other properties. Indeed, the appeal site as it stands allows views onto the neighbouring residences, particularly those on Admirals Close. However, the development would increase the opportunity for intrusive overlooking.
16. Furthermore, the proposed building would be more noticeable than the church from the Admirals Close properties and The Vicarage as it would be closer to the site boundary and it would be significantly taller. The existing and proposed trees would partially screen the building but the images provided by the appellant indicate it would still be visible from the adjoining back gardens. From the Admirals Close properties immediately to the rear of the site, the facility would appear overbearing due to its height and overall mass and as it would be on higher land. However, existing mature trees already cause a dominating effect onto The Vicarage and the development would not meaningfully worsen the outlook from this property.
17. I understand the proposal has been revised following consultation with local residents with the aim to reduce the effects of the building on nearby dwellings. Nonetheless, for the above reasons, I conclude the development would have a harmful effect on living conditions at properties behind the site on Admirals Close in terms of loss of privacy and outlook and at The Vicarage in terms of loss of privacy. In these regards, the development would not accord with CS policy SD1. Amongst other things, this policy looks for all development to safeguard residential amenity. The Council's submissions also refer to CS policy LD1 but this contains no provisions relevant to the assessment of this main issue.

Other considerations.

18. Interested parties have submitted comments on other matters. Concerns are raised that the development would cause a loss of light to adjoining residences. However, the development would lie to the east and north east of the adjacent gardens and so it would only cause overshadowing during parts of the morning. The residences would still have access to direct sunlight for most of the day as the sun moves

southwards and then westwards in the sky. Therefore, the proposal would avoid an unacceptable level of overshadowing.

19. The care facility is unlikely to generate noise of a nature or level to cause unacceptable disturbance to local residents. Construction of the facility is bound to be noticed but any associated noise would be for a temporary time and could be controlled to an acceptable level through a condition on hours of construction. Also, I see no reason why lighting associated with the development is bound to affect living conditions at the neighbouring properties. A planning condition could be imposed to ensure any external lighting is appropriate.
20. The proposal would include parking spaces as well as an ambulance bay. Concerns are raised on the amount of parking spaces that would be provided as well as the effect of traffic movements associated with the development on highway safety. However, I attach significant weight to the comments from the local highway authority officer that the level of parking and its layout is satisfactory. Moreover, the officer raises no concerns to the proposed access arrangements or to the impacts of the proposal on highway safety. A planning condition is suggested by the Council to ensure construction vehicle parking is managed appropriately.
21. The proposed building would be sizeable, although it would be accommodated comfortably on the plot with garden areas, existing trees and new planting on parts of the site. Also, the facility would include lower elements and different external materials that would break up the building's mass. Moreover, there is an existing tall nursing home adjacent to the site. As such, the proposed building would not appear unusual by virtue of its size or design. The various open spaces and terraces would provide sufficient communal areas for residents and staff.
22. The local public sewerage system drains to a wastewater treatment works (WwTW) that ultimately discharges to the River Wye Special Area of Conservation (the SAC). Welsh Water advise the foul water flows associated with the development can be accommodated within the immediate public sewerage system. However, the relevant WwTW is currently failing to comply with performance standards on the forward flow of phosphorous. Welsh Water are required to deliver a scheme at the WwTW to ensure compliance with the performance standards and so it suggests a condition that would restrict the use of the proposed development until after 31 December 2026. The development would not be ready for occupation by that date given its scale and likely time required for construction. As such, I consider the suggested condition is unnecessary. Furthermore, in light of the comments from Welsh Water, I agree with the findings of the Council's Habitat Regulations Assessment that the proposal would have no likely significant effects on the qualifying features of the SAC.
23. Comments from NHS Herefordshire and Worcestershire indicate the development would have an effect on the provision of local health services and that a financial contribution towards mitigation should be secured through a planning obligation. However, the submissions indicate there is no requirement under the terms of the Council's Planning Obligations Supplementary Planning Document to secure such a contribution. As such, I find a planning obligation as suggested is unnecessary to ensure the development is acceptable in planning terms.

24. The Council's Ecology advisor suggests it is unlikely the development would have any effects on protected species or other features of ecological interest. Based on the submissions, I find no reason to disagree with this advice.
25. Cox Cottage is a grade II listed building on the opposite side of Venns Lane to the appeal site. Its significance includes its age as it dates from the early 19th century and as it was purpose built for the important artist David Cox. Also, it is visually interesting due to its quaint appearance with thatched roof and small windows. On the other side of St Barnabas Close is another grade II listed building called Abbey Grange. This was also lived in by David Cox and so its significance in these regards is similar to Cox Cottage. Moreover, its dressed stone front elevation contains interesting architectural features and a well-proportioned symmetry. The listed buildings together have a group value due to their close proximity and connection with the painter.
26. The development would be seen in the same views along Venns Lane and St Barnabas Close as both listed buildings and so it would affect their settings. I am required to pay special regard to the desirability of preserving the setting of the listed buildings and any architectural or historic interest that they possess¹.
27. The new facility would not obstruct existing views of Cox Cottage from the highway as it would be set away from the roadside boundaries of the site. The development would remove current viewpoints from land directly outside the church but there would be views towards Cox Cottage from the proposed car park and land to the side and front of the care facility. As such, the proposal would not affect the visual appreciation of Cox Cottage.
28. Also, the proposed building would not block views from the roads of Abbey Grange. Indeed, the inclusion of windows facing St Barnabas Close would allow users of the development to more readily appreciate the architectural qualities of the listed property compared to the existing church. The proposal would avoid any visual barrier between Cox Cottage and Abbey Grange and so their link to each other and to David Cox would remain unaffected. Therefore, the proposal would cause no harm to the setting of the listed buildings and it would preserve their significance.
29. The above considerations fail to justify a decision to dismiss the appeal. As such, they do not affect my overall assessment.

Points in support of the proposal and planning balance.

30. The harm I have identified in respect of the second main issue means the proposal would not accord with the CS policies when read as a whole. It follows to consider whether other factors justify granting planning permission contrary to the development plan.
31. The appeal site is in an urban area that clearly lies within the built up confines of Hereford. Policy S4 of the Framework dictates that development within settlements should be approved unless the benefits of doing so would be substantially outweighed by any adverse effects. The national decision-making policies of the Framework should be considered in carrying out this balancing exercise.
32. I have found the proposal would not lead to the unacceptable loss of a community facility having regard to CS policy SC1. There would be no adverse impact in

¹ Section 66(1) of the Planning (Listed Buildings and Conservation Areas) Act 1990.

relation to the safeguarding of buildings for particular uses as referred to in part 2(a)(i) of policy S4 of the Framework. This is a neutral factor in my overall assessment.

33. In terms of benefits, the development would make better use of underutilised land as advocated under policy L2(1)(b) of the Framework. This is a factor of substantial weight. The development would also create construction employment and employment for care workers once it is operational. Any planning permission granted would be subject to the mandatory biodiversity gain condition and so the proposal would lead to a minor enhancement in these regards. These factors together attract considerable weight.
34. Annex D of the Framework requires local authorities to demonstrate a supply of deliverable housing sites that would be sufficient to provide a minimum of 5 years' worth of housing when assessed against their housing requirements. The Council suggest it is only able to show 3.11 years' worth of sites, which is a significant shortfall. The proposal would help address an evidenced unmet need for more residences, a benefit that attracts substantial weight.
35. Moreover, the officer from the Council's Strategic Housing Team supports the proposal as there is a significant local need for care bed spaces. This sentiment is reflected in CS policy H3 that seeks the provision of a range of housing including that capable of meeting the needs of the elderly population. The appellant refers to the Council's Market Sustainability Plan 2023 that indicates the number of nursing home beds will need to increase. The proposal would help address this specific accommodation need. As such, the scheme benefits from the substantial weight as advocated under policy HO7 of the Framework. The facility also accords with policy HO9(1)(a)(i) of the Framework as it would provide acceptable living conditions and it would be in a urban location with appropriate access to services. Overall, the benefits of the development attract very considerable weight.
36. Policy P3 of the Framework looks for development to be appropriate to its location and to consider effects on living conditions. The Council also suggests the identified harm to residential amenity would bring the proposal into conflict with policy L2 of the Framework, as this looks for residential redevelopment schemes to maintain acceptable living conditions in terms of privacy. The identified harm caused to living environments at neighbouring residences would be mitigated to a degree through the provision of new planting. Even so, I attach significant weight to the adverse effects in these regards.
37. In applying the planning balance, I find the benefits of the proposal would not be substantially outweighed by the adverse effects and so policy S4 of the Framework dictates that planning permission should be approved. This support justifies allowing the appeal and granting planning permission contrary to the CS.

Conditions

38. I have had regard to the list of conditions suggested by the Council in light of policy DM6 of the Framework. Where necessary, I have made amendments for reasons of precision and to avoid the use of pre-commencement requirements.
39. I attach condition 2 that lists the approved plans for clarity reasons. I have sought clarification from the main parties as to the numbers of the drawings showing floor plans that are before me for consideration. The responses have been inconsistent

as the Council has asked me to consider floor plan drawings numbered 805 024, which the appellant has asked me to ignore. In any event, I am satisfied that other drawings show at different scales the floor plans of the proposed building and so I have omitted the 805 024 drawings from the list of approved plans.

40. Condition 3 is imposed to help minimise the use of resources. Condition 4 is required in the interests of highway safety and to safeguard living conditions at nearby residences. Conditions 5 and 6 are needed to safeguard the well-being of trees on the site that are to be retained. Condition 7 will ensure the development is served by a suitable water supply. Condition 8 is required to ensure the appropriate disposal of foul and surface water from the development. There is no need for separate conditions that stipulate how foul and surface water shall be managed as these are matters that would be assessed through the terms of the condition.
41. There is no need for a condition on hard landscaping and proposed levels as the appeal drawings already provide sufficient information. There is also information before me on the proposed planting. However, condition 9 requires the submission and approval of cultivation details as well as an implementation timetable and a soft landscape management and maintenance plan. This is needed to ensure the development is of a satisfactory appearance and to minimise overlooking onto the neighbouring properties.
42. Condition 10 is imposed to ensure the development includes measures to enhance the biodiversity value of the site and promote the well-being of wildlife. Conditions 11 and 12 are imposed to promote sustainable modes of travel to and from the development. Condition 13 is required in the interests of highway safety. Condition 14 seeks to avoid a nuisance to nearby residents and harmful effects on foraging or commuting bats. There is no need for a separate condition that stipulates the design of external lighting as this would be assessed by the Council under the terms of the condition.
43. The approved plans provide details of the materials to be used in the construction of the external elevations of the facility. Accordingly, the suggested condition that requires samples of materials to be approved is not required. Also, there is no need for a condition that requires the approval of details of external features such as soil and vent pipes, boiler flues and meter boxes as these would be minor elements of the whole building and they would not meaningfully affect its appearance. The suggested condition on how solar panels are disposed of once they become redundant is not related to planning and so it has not been imposed.

Conclusion

44. The proposal would conflict with the development plan but material considerations indicate that a decision should be made other than in accordance with it. Therefore, I conclude the appeal should be allowed.

Jonathan Edwards

INSPECTOR

SCHEDULE OF CONDITIONS

- 1) The development hereby permitted shall begin not later than 3 years from the date of this decision.
- 2) Except where otherwise stipulated by conditions attached to this permission, the development hereby permitted shall be carried out in accordance with the following approved plans:-
 - Site Location Plan and Block Plan: DWG 805 041 B
 - Proposed elevations with materials: DWG: 805 050
 - External works/car parking: DWG: 805 030 H
 - Existing plans and elevations: DWG: 805 040
 - Level 0 Floor Plan DWG: 805 043
 - Level 1 Floor Plan DWG: 805 044
 - Level 2 Floor Plan DWG: 805 045
 - Proposed elevations: Plan DWG: 805 046
 - Proposed elevations: Plan DWG: 805 047
 - Floor Plan Level 0 DWG: 805 032
 - Floor Plan Level 1 DWG: 805 033
 - Floor Plan level 2 DWG: 805 034
 - Floor Plan Lower-level DWG: 805 031
 - Landscaping scheme level 1 DWG SE P48 GD01
 - Landscaping scheme level 1 DWG SE P48 GD02
 - Topographical survey DWG BA 350200123-01 rev A
 - Topographical survey with UGS DWG BA 2500780 01
 - Haydon Plan/Tree Plan: 11445-D-AIA Rev B
 - CGIs of proposal 805 048
 - CGIs of proposal 805 049
 - Exiting Vehicles Visibility Assessment 325/2024/021 P1
- 3) The development hereby permitted shall not begin on either the demolition or construction until a Resource Audit has been submitted to and approved in writing by the local planning authority. The Resource Audit shall identify the approach to materials and resource efficiency during the demolition of the existing building as well as the construction and operational phases of the development and shall include the following details:
 - the amount and type of construction aggregates required and their likely source;
 - measures to minimise the use of raw materials (including hazardous materials) during construction, through sustainable design and the use of recycled or reprocessed materials;

- steps to be taken to reduce, reuse and recycle waste (including hazardous waste) generated during the construction phase;
- the type and volume of waste expected to be generated during both the construction and operational phases of the development;
- details of any on-site waste recycling facilities to be provided during construction and once the development is operational;
- measures to maximise the diversion of waste from landfill during the operational phase, including recycling, composting, and recovery strategies;
- end-of-life considerations for materials used within the development, including potential for reuse and recyclability;
- an assessment of the embodied carbon and lifecycle carbon costs of materials to be used.

Thereafter, the development shall be carried out in accordance with the approved Resource Audit.

- 4) The development hereby permitted shall not begin on either the demolition or construction works until details and location of the following have been submitted to and approved in writing by the local planning authority, and which shall be operated and maintained during construction of the development hereby approved:
- a method for ensuring mud is not deposited onto the Public Highway
 - construction traffic access location
 - parking for site operatives
 - construction traffic management plan (including construction working hours).

The development shall be carried out in accordance with the approved details for the duration of the construction.

- 5) The development hereby permitted shall not begin on either the demolition or construction works until an Arboricultural Method Statement (AMS) and Tree Protection Plan (TPP) have been submitted to and approved by the local planning authority. The AMS/TPP should include information to show measures designed to minimise the impacts of demolition and construction works to retained trees. The development shall be carried out in accordance with the approved AMS and the TPP.
- 6) Except where otherwise stipulated by conditions attached to this permission, the development works hereby submitted shall be carried out in accordance with the submitted Hayden's Tree Survey and Arboricultural Impact Assessment dated 7 March 2025 and the accompanying drawing numbered 11445-D-AIA Rev B.
- 7) Apart from the demolition of the existing building, no works on construction of the development hereby permitted shall begin until a potable water scheme to serve the development has been submitted to and approved in writing by the local planning authority. The scheme shall demonstrate that the existing water supply network can suitably accommodate the proposed development. If necessary, the scheme shall include details of how the existing public water

- supply network would be reinforced. The approved potable water scheme shall be fully implemented prior to the first occupation of the facility hereby permitted and shall thereafter remain in perpetuity.
- 8) Apart from the demolition of the existing building, no works on construction of the development hereby permitted shall begin until a drainage scheme to serve the development has been submitted to and approved in writing by the local planning authority. The scheme shall provide for the disposal of foul, surface and land water, and include an assessment of the potential to dispose of surface and land water by sustainable means. The scheme shall be implemented in accordance with the approved details prior to the first occupation of the development and no further foul water, surface water and land drainage shall be allowed to connect directly or indirectly with the public sewerage system.
- 9) Apart from the demolition of the existing building, no works on construction of the development hereby permitted shall begin until a written specification setting out the size, quantity, density and cultivation details of the planting as shown on the approved plans, as well as a implementation timetable for this planting and a schedule of maintenance for a period of 10 years has been submitted to and approved in writing by the local planning authority. The planting shall be provided and maintained in accordance with the approved details.
- 10) Prior to the first occupation of the care facility hereby permitted, the species enhancements as specified in section 4.3 of the Awareecology Biodiversity Net Gain Report dated 29.4.2025 shall have been provided and thereafter the installed features shall be retained and maintained.
- 11) Prior to the first occupation of the care facility hereby approved, a Travel Plan which contains measures to promote alternative sustainable means of transport for staff and visitors with respect to the development shall be submitted to and approved in writing by the local planning authority. The approved Travel Plan shall be fully implemented. A detailed written record shall be kept of the measures undertaken to promote sustainable transport initiatives and a review of the Travel Plan shall be undertaken annually. All relevant documentation shall be made available for inspection by the local planning authority upon reasonable request.
- 12) Prior to the first occupation of the care facility hereby permitted, full details of a scheme for the provision of covered and secure cycle parking facilities within the curtilage of the care facility shall be submitted to and approved in writing by the local planning authority. The approved cycle parking facilities shall be provided and made available for use prior to the first use of the development hereby permitted. Thereafter, these facilities shall be retained and maintained.
- 13) Prior to the first occupation of the care facility hereby permitted, full details of the entry barrier system serving the Venns Lane access— including its specification, method of operation (e.g. automatic detection), fail-safe procedures, and long-term management arrangements—shall be submitted to and approved in writing by the local planning authority. The barrier system shall be installed in accordance with the approved details prior to the first use of the development. Thereafter, it shall be retained, operated, and maintained

for the lifetime of the development to ensure the Venns Lane access only allows vehicles onto, and not off, the permitted car park.

- 14) Details of any external lighting to be provided to serve the development hereby permitted shall be submitted to and approved in writing by the local planning authority prior to its installation.